

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX X

MEYON GRANT

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. LATISHA SIDNEUS,
SHIELD NO. 3463, IN HER INDIVIDUAL AND OFFICIAL CAPACITY.

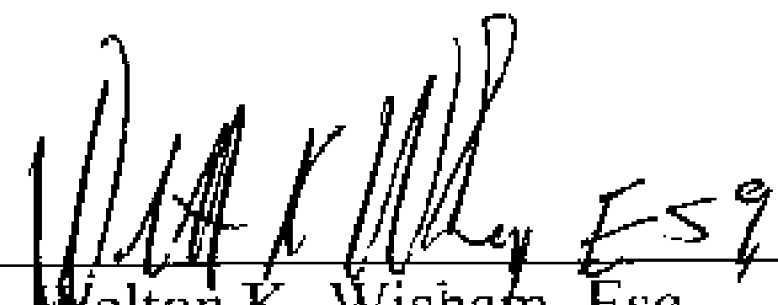
Defendants,

SUMMONS
Index No.
Date Index No. Purchased:
Plaintiff Designates Bronx
County as the Place of Trial.
Pursuant to C..P.L.R. 503
Jury Trial Demanded

X

You are hereby summoned to answer the Complaint in this action and to serve a copy of your answer or if the Complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: June 3, 2022
Bronx, New York

By  Esq.
Welton K. Wisham, Esq.
The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York 10461
718- 924-3557 Office

Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX **X**

MEYON GRANT

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
 POLICE DEPARTMENT, P.O. LATISHA SIDNEUS,
 SHIELD NO. 3463, IN HER INDIVIDUAL AND OFFICIAL CAPACITY.

Defendants.

Index No.
ECF
COMPLAINT

**Plaintiff Designates Bronx
 County as the Place of Trial
 Jury Trial Demanded**

X

Plaintiff, Meyon Grant, by her attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for her Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and police officer, Latisha Sidneus who knowingly and willfully arrested, detained and held Plaintiff in custody for twenty hours without probable cause to have reasonably believed that the Plaintiff had committed a crime.

Officer Sidneus was aware of the fact when she arrested Ms. Grant that there was no probable cause for Plaintiff's arrest.

Officer Sidneus knew she had no facts for which a reasonable officer could find probable cause justifying Plaintiff's arrest by failing to file an accusatory instrument with the Criminal Court of the City of the Bronx, causing the Bronx District Attorney's office to issue a letter of dismissal to Ms. Grant who suffered undue emotional distress.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the unreasonable arrest, seizure and imprisonment of Plaintiff, Meyon Grant, a twenty year-old African American female on September 7, 2021, who was an invitee into a private residence at the time of her arrest.

2. That on September 7, 2021, at approximately 5:26 pm, Ms. Grant and her cousin, (a minor whose name is protected and not disclosed), received an invitation from a friend to come and hang out at 1682 Seward Ave. Bronx, New York, a residential complex.

3. Ms. Grant had never been present at this residence prior to September 7, 2021.

4. Plaintiff and her cousin went inside the apartment and immediately sat down in the living room.

5. Minutes after Plaintiff's entry inside the residence, Ms. Grant herd loud banging on the door.

6. Plaintiff herd someone outside the door yelling " open the door if you don't open the door you will be in more trouble".

7. Ms. Grant, fearing that something awful could occur, got up and opened the door.

8. Police officer Sidneus and other police officers stormed inside the home and immediately seized two men inside the apartment.

9. Officer Sidneus placed Ms. Grant under arrest as Plaintiff protested vehemently that she had done nothing wrong and was only there in the apartment to visit. Plaintiff was handcuffed and arrested and taken to the 43rd precinct.

10. Officer Sidneus, while inside the 43rd police precinct **accused Ms. Grant of Criminal Possession of a Loaded Weapon and Criminal Trespass.**

11. That on September 24, 2021, Assistant District Attorney, and Deputy Bureau Chief, Concetta Petrillo, of the Bronx Office of the District Attorney wrote a letter to Ms. Grant indicating that Ms. Meyon Grant's case, under arrest number B21624088 had been dismissed because, "An accusatory instrument was not drafted". (Emphasis added)

12. That officer Sidneus knowingly and willfully engaged in misconduct by charging Plaintiff with crimes for which the officer knew the Plaintiff had not in fact committed at the time of Plaintiff's arrest.

13. This action is brought pursuant to 42 U.S Section 1983, and under New York State Law to redress Plaintiff's rights secured under the Fourth Amendment and Fourteenth Amendments to the Constitution of the United States and pursuant to Article I Section 12 of the Constitution of the State of New York for False Arrest, False Imprisonment, Unreasonable Search and Seizure and the emotional injuries suffered by the Plaintiff therein for being unlawfully imprisoned for approximately twenty four hours without legal justification.

14. This action is also brought against the City of New York for the negligent acts of officer Sidneus in accordance with the Common Law in the State of New York pursuant to Respondent Superior.

JURISDICTION AND VENUE

15. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, County of the Bronx.

16. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States pursuant to 42 U.S.C Section 1983 and under Article I Section 12 of the Constitution of the State of New York.

17. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42 U. S. Code Section, 1983.

18. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

19. Plaintiff, Meyon Grant at all relevant times herein is a resident of the State of New York and residence in Bronx, County. Ms. Grant is a twenty-year-old African American female and is a citizen of the United States.

20. The Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

21. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant, police officer, Latisha Sidneus.

22. The City of New York is responsible for enforcing the rules of the New York City Police Department and the police officers within the New York City Police Department and for ensuring that the Defendants police officers named herein and all other New York City Police Officers obey the laws of the State of New York and the laws of the Constitution of the United States.

23. Defendant, police officer Latisha Sidneus, was at all times relevant throughout this Complaint, a police officer employed by the New York City Police Department who is believed to be assigned to the 43rd police precinct located at 900 Fteley. Ave, Bronx, New York.

23. That at all relevant times officer Sidneus was acting within the scope of her employment as police officer of the City of New York and under the color of state law.

24. At all times relevant herein the Defendant, as a police officer of the City of New York, were and still remain, a police officer employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department and acted within the scope of their employment and as such acted under color of state law.

JURY DEMAND

25. Plaintiff demands trial by jury.

NOTICE OF CLAIM

26. Plaintiff, in furtherance of her New York State causes of action, timely filed a Notice of Claim on or about October 22, 2021, well within the statutory ninety days of the incident alleged herein against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.

27. On November 16, 2021, the Comptroller of the City of New York acknowledge receipt of the Plaintiff Notice of Claim by assigning Claim number 2021PI031471.

28. Ms. Grant appeared on February 7, 2022, via Zoom Meeting for the required 50 -h hearing testimony

29. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

30. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

31. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

32. That the Plaintiff have satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

33. That by reason of the foregoing, Plaintiff have been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

34. On September 7, 2021, at approximately 5:26 pm, Ms. Grant and her cousin, (a minor whose name is protected and not disclosed), received an invitation from a friend to come and hang out at 1682 Seward Ave, Bronx, New York, a residential complex.

35. Ms. Grant had never gone to this address prior to September 7, 2021.

36. That Ms. Grant, had no physical control over the area in the living room nor did Plaintiff have any control over any property inside 1682 Seward Ave, Bronx, New York at the time of her arrest.

37. Plaintiff Grant did not live or reside at the above address nor was she a tenant or related to anyone inside the premises.

38. Ms. Grant and her cousin went inside the apartment and sat down in the living room.

39. That minutes after Ms. Grant had arrived inside the premises, Plaintiff heard a loud knock and banging on the front door.

40. Ms. Grant heard someone outside the door yelling **“ open the door if you don’t open the door you will be in more trouble”**.

41. Ms. Grant, fearing that something awful could occur, got up and opened the door.

42. The police stormed inside the home and immediately seized two men inside the apartment who were in the back room to the apartment.

43. That officer Sidneus then told Ms. Grant and her cousin that they were under arrest.

44. Officer Sidneus made no attempt to determine whether Plaintiff was connected to the residence at the time of her arrest.

45. Officer Sidneus placed Plaintiff in handcuffs as Ms. Grant vehement protested and asked why she being arrested.

46. Ms. Grant protested and asked the officers why she and her cousin were being arrest and told the officers” **We haven’t done anything wrong”!**

47. The officers told Ms. Grant she was trespassing and placed her and her cousin in handcuffs and removed from the premises.

48. Ms. Grant was **confused and asked how are we trespassing?**

49. Plaintiff had gone to the Bronx residence believing that the individuals who had invited her and her cousin lived in the residence. She was not trespassing.

50. Ms. Grant asked the officers if they were going to read the Plaintiff and her cousin their rights.

51. The officers responded that they **didn’t have to “ that’s in the movies”**.

52. Officer Sidneus drove Ms. Grant to the police precinct ,PSA 8 located at 2491 Randell Ave. Bronx, New York where she remained for approximately three (3) hours in police custody.

53. Ms. Grant was ordered to remove her shoes inside the police precinct.

54. The officers placed Ms. Grant's purse inside a plastic bag and placed Plaintiff inside a holding cell where she remained for approximately three or four hours without being told why she had been arrested.

55. Ms. Grant, afraid and alone, begged the officers to allow her to call her mother to let her know that she was in jail.

56. The officers ignored Plaintiff's request and drove Mr. Grant to the 43rd precinct.

57. Plaintiff was photographed and fingerprinted and held for approximately three (3) hours in the 43rd police precinct.

58. The officers at the precinct began to question Ms. Grant about her knowledge of guns inside the residence where Plaintiff had been arrested.

59. The officers showed Ms. Grant pictures of guns and began to interrogate Ms. Grant without the presence of an attorney about Plaintiff's knowledge of weapons allegedly found inside the residence.

60. Ms. Grant repeatedly denied knowing about any guns and was shocked to find out that she was considered a suspect regarding illegal possession of weapons because not only did Plaintiff lack knowledge of any weapons, the arresting officers never mentioned that Ms. Grant was under arrest for criminal possession of weapons or for trespassing..

61. Ms. Grant was handcuffed and placed in a police van and driven back to the PSA 8 police precinct on Randell Ave, Bronx, New York where she remained in custody for another five (5) hours.

62. Officer Sidneus then drove Ms. Grant from the PSA 8 police precinct to Central Booking at the Bronx Criminal Justice Center located at 161st St. Bronx, New York.

63. Ms. Grant was subjected to another search of her purse which had a can of mace for which officer Sidneus charged Claimant with wrongful possession of pepper spray in the officer's police reports, none of which were drafted in an accusatory instrument..

64. Plaintiff remained in Central booking handcuffed to a bench for approximately four (4) hours.

65. Ms. Grant was fingerprinted and handcuff during her detention inside Central booking.

66. After twenty hours in police custody. Plaintiff was brought to an upstairs courtroom awaiting arraignment when she was **informed by a court room officer that her case had been dropped.** (Emphasis added)

67. Plaintiff obtained a **written copy of the disposition of the dismissal of her case in support of her false arrest on September 24, 2021 by Concetta Petrillo, Deputy Bureau Chief Assistant District Attorney in the Office of the Bronx District Attorney's Office, stating that " On September 7, 2021, Meyon Grant was arrested in Bronx County under arrest number B21624088. Upon reviewing the records of the Bronx District Attorney's Office, the case against Meyon Grant was deferred to prosecute in the Complaint Room, meaning an accusatory instrument was not drafted."** (Emphasis added)

68. That the City of New York through the New York City Police Department has maintained a custom, practice and a de facto policy of arresting individuals without probable cause and hold individuals such as Meyon Grant in custody of the New York City Police Department without probable cause and allowing police officers to go unpunished for failing to draft accusatory instruments supported by probable cause.

69. That the failure to train, supervise and or discipline officers who knowingly and willfully fail to support such arrest and fail to draft accusatory instruments resulted in the

deprivation of Plaintiff's right to liberty without due process of law in violation of the Fourteenth Amendment of the Constitution of the United States and caused Meyon Grant substantial pain and emotional distress.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST POLICE OFFICER LATISHA
SIDNEUS FOR FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO
42 U. S. C. SECTION 1983.**

70. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "69", with the same force and effect as though more fully set forth at length herein.

71. That at all time herein mentioned police officer Sidneus directly participated and caused Plaintiff's injuries, false arrest, detention, imprisonment, and deprivation of Plaintiff's liberty by arresting Ms. Grant without probable cause to have reasonably believed Plaintiff had possession and control of a weapon..

72. Officer Sidneus knowingly and willfully held Plaintiff in custody yet failed to draft and submit an accusatory instrument describing the criminal conduct to the Bronx Criminal Court.

73. That officer Sidneus deliberately ignored the law related to constructive possession of a weapon.

74. That in order to arrest and prosecute a person for Criminal Possession of Weapon based on Constructive Possession, the arresting officer must establish proof that the Defendant has the requisite "dominion and control over the proper by a sufficient level of control over the area in which contraband was found." **People v. Manini**, 79 NYS 2d 561, 573 (1992)

75. It is well settled law that a person's **mere presence in an apartment is insufficient to constitute constructive possession.** **People v. Edwards**, 206 Ad 2d 597, 597-598(1994)
(Emphasis added)

76. At the time of Plaintiff Grant's arrest, Plaintiff was not in physical or constructive possession of a weapon.

77. Ms. Grant was invitee to 1682 Seward Ave. in the Bronx. Plaintiff did not reside in the apartment nor had Plaintiff ever been in the apartment prior to the date of her arrest.

78. No weapon was recovered near Ms. Grant at time of her unlawful arrest.

79. Ms. Grant had never slept in the apartment.

80. Officer Sidneus did not recover any clothes belonging to Ms. Grant at the premises on the date of Plaintiff's arrest to give rise to a reasonable belief that Plaintiff Grant was in constructive possession of a weapon.

81. Officer Sidneus knew that she arrested Ms. Grant without probable cause to have reasonably believed that the Plaintiff had dominion and control of a weapon.

82. The fact that officer Sidneus failed to draft a criminal accusatory instrument is an admission of the fact that officer Sidneus knew there was no basis of fact to support Plaintiff's arrest.

83. Upon information and belief, officer Sidneus has not been disciplined for failure to draft and submit a accusatory instrument to the criminal court associated with Plaintiff's arrest presents a clear and present danger that officer Sidneus will subject other individuals to being falsely arrested and detained in police custody without probable cause.

84. That officer Sidneus met with other officers on the scene of the arrest and conferred with one another for the sole purpose of preparing false, misleading information against Plaintiff Grant which subjected Plaintiff to the deprivation of liberty without probable cause.

85. Plaintiff was held against her will by officer Sidneus in handcuffs and chained to a bench unable to move and unreasonably seized and arrested by the Defendant.

86. Plaintiff was conscious of her arrest, detention and unlawful seizure and did not consent to her confinement.

87. Plaintiff's arrest and seizure was unreasonable and lacked probable cause.

88. Defendant Sidneus as a police officer of the City of New York, acted in substantial abuse of her power and authority granted under federal and state law as a New York City Police Officer.

89. Officer Sidneus knowingly and willfully prepared false police reports in the police precinct accusing the Plaintiff of Criminal Possession of a Weapon and Criminal Trespass. Officer Sidneus however, knowingly and willfully failed to draft an accusatory instrument under her duty as a New York City Police officer.

90. Defendant Sidneus intentionally deprived the Plaintiff of her liberty the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

91. Defendant Sidneus forcibly handcuffed, searched, seized, and subjected Plaintiff to undue humiliation, personal degradation, abuse, emotional distress, trauma, and embarrassment.

92. As a direct and proximate result of Officer Sidneus' misconduct and abuse of authority described above, Plaintiff, Meyon Grant suffered emotional distress from her false arrest and imprisonment for which the Plaintiff now seeks financial compensation pursuant to 42 U.S.C. Section 1983, for an amount which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT LATISHA
SIDNEUS FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCH AND SEIZURE PURSUANT TO 42 U.S.C. SECTION 1983.**

93. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "92," with the same force and effect as though more fully set forth at

length herein.

94. Plaintiff, Meyon Grant, an innocent twenty-year-old girl, commenced this action against the Defendants pursuant to 42 U.S.C Section 1983 which states in relevant part that:

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress... 42 U.S.C Section 1983,

95. Plaintiff's federal claims are brought pursuant to the Fourth Amendment to the Constitution of the United States for officer Latisha Sidneus' unreasonable search, and seizure of Plaintiff, Meyon Grant.

96. Police officer Sidneus, knowingly and unreasonably, violated Plaintiff's Constitutional rights under the Fourth Amendment by arresting the Plaintiff knowing that Ms. Grant was not in possession of a weapon, was not a tenant of the apartment in which the arrest occurred, nor was Ms. Grant in close proximity to any weapon, if any that was recovered from the premises on the date of Plaintiff's arrest.

97. Officer Sidneus knew she had no basis to arrest Plaintiff Grant pursuant to the laws of Constructive Possession of a Weapon and held Plaintiff in custody for twenty four hours without probable cause.

98. Officer Sidneus knowingly and willfully arrested Plaintiff Grant and **failed to** draft an accusatory instrument in support of the arrest with sufficient facts constituting probable cause.

99. Officer Sidneus' omission to draft and submit the accusatory instrument was willful and deliberate.

100. That officer Sidneus knew at the time of the arrest of Ms. Grant that Plaintiff was innocent and was just merely present in the apartment prior to the entry by officer Sidneus and other police officers.

101. That the manner in which the Plaintiff were seized and held in custody was unreasonable under the circumstances as set forth herein.

102. That the Defendant and other officers on the scene of Plaintiff's arrest conspired with one another to violate Plaintiff rights to be free from the unreasonable search, seizure and deprivation of liberty without probable cause.

103. That in the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard to Plaintiff Constitutional rights.

104. That Ms. Grant was deprived of her rights, privileges and immunities secured to her under the Constitution and laws of the United States, and the State of New York including Plaintiff rights secured under the Fourth, and Fourteenth Amendment to the Constitution of the United States, and pursuant to Article I, Section 12 of the Constitution of the State of New York.

105. That the officer Sidneus acted in her individual, and official capacity, and under color of law with other unknown police officers who conspired together and reached a mutual understanding to undertake a course of conduct that violated Plaintiff's rights, privileges, and immunities thereof.

106. As a direct and proximate result of the conspiracy between officer Sidneus and other officers of the New York City Police Department, Plaintiff, Meyon Grant was unreasonably searched, seized, and falsely imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

107. By reason of the foregoing, Plaintiff Grant was intentionally confined without privilege and without probable by officer Latisha Sidneus.

108. As a consequence thereof, Plaintiff, Grant has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
PURSUANT TO 42 U.S.C. SECTION 1983, FOR A PATTERN AND PRACTICE OF
FAILING TO TRAIN, SUPERVISE OR DISCIPLINE POLICE OFFICERS WHO FAIL
TO DRAFT ACCUSATORY INSTRUMENTS.**

109. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "108", with the same force and effect as though more fully set forth at length herein

110. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs of sanctioning the practice of New York City Police officers to arrest individuals without probable cause and knowingly and willfully fail to draft accusatory instruments of facts indicative of probable cause of such arrests.

111. That the practice by NYPD officers of not drafting accusatory instruments for those individuals deprived of their liberty by such officers exhibits deliberate indifference to the arrestees' Constitutional rights.

112. That the police and practice as described herein was in effective on the date of Ms. Grants unlawful arrest.

113. That the pattern and practice was unconstitutional which caused Plaintiff, Meyon Grant, to be deprived of her liberty for approximately twenty-four hours in violation of the Substantive Due Process Clause of the Fourteenth Amendment.

114. That the City of New York has known that its police officers repeatedly violate individuals' rights by arresting, detaining individuals without probable cause to have reasonably

believed that the persons for whom the officers come into contact had in fact committed a crime or offense.

115. That the City of New York and the New York City Police Department has knowingly and willfully failed to properly train, supervise and or discipline police officers in determining probable cause and fail to draft accusatory instruments that are required to prosecute individuals arrested by members of the New York City Police Department.

116. The Defendants' unlawful actions were done willfully, knowingly and with specific intent to deprive Plaintiff of their constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

117. Plaintiff obtained a **written copy of the disposition of the dismissal of her case in support of her false arrest on September 24, 2021 by Concetta Petrillo, Deputy Bureau Chief Assistant District Attorney in the Office of the Bronx District Attorney's Office, stating that " On September 7, 2021, Meyon Grant was arrested in Bronx County under arrest number B21624088. Upon reviewing the records of the Bronx District Attorney's Office, the case against Meyon Grant was deferred to prosecute in the Complaint Room, meaning an accusatory instrument was not drafted." (Emphasis added)**

118. That the City of New York has known for years that officers arrests individuals without filing accusatory instruments causing such arrests to be invalidated.

119. That the failure by officer Sidneus to submit or to prepare legally sufficient accusatory instruments **is indicative of the lack of probable cause for the Plaintiff arrest for which the officer knew Plaintiff had not engaged in criminal activity.**

120. That the Defendant, Sidneus intended to cause Plaintiff to suffer emotional distress by holding Plaintiff in custody without the requisite probable cause.

**Pattern and Practice
of failing to file accusatory
instruments after arrest.**

a) Clarence Ross

121. The New York City Police Department has a long history of arresting individuals without probable cause and failing to file accusatory instrument subsequent to arrestees' detention causing dismissal of Defendant's arrest..

122. On November 2, 2018, September 10, 2018, September 17, 2020 ad December 9, 2020, **Defendant, Clarence Ross** was unlawfully arrested without probable cause and held in custody for hours upon hours voicing his innocence.

123. Mr. Ross was arrested under arrests numbers, B18649496, B18641522, B20624083, B20624078, B20624080, and B20632684.

124. That Concetta Petrillo, Deputy Bureau Chief Assistant District Attorney in the Bronx District Attorney's office, informed Mr. Ross in writing, that the above arrests had been dismissed because an accusatory instrument **had not been drafted**.

125. That on April 26, 2022, Peter Lomp, Assistant District Attorney Queens County informed Mr. Victor Mendeng that his arrest on April 26, 2022 had been dismissed prior to Criminal Court arraignment.

b) Bevline Nembhard

126. That on March 21, 2022, Bevline Nembhard, another Defendant, received written notification that her arrest on March 25, 2021, in Bronx, County, under arrest number B21608937 had been dismissed because the Bronx District Attorney office declined to prosecute because " **an accusatory instrument was not drafted**".

127. That the City of New York has been aware of willful and intentional failure by New York City Police officers to draft and file written accusatory instruments supporting numerous arrests of innocent individuals such as the Plaintiff.

128. That at all relevant times the City of New York, with deliberate indifference to the risk of injury of incarceration to innocent members of the public, failed to train, supervise or discipline police officers who knowingly and willfully failed to draft and file accusatory instruments.

129. That the custom and or practice by the New York City Police Department and its police officers who knowingly failed to train, supervise and or discipline police officers who arrest members of the public and fail to draft accusatory instruments is indicative of a widespread policy of allowing police officers to make unlawful arrests causing individuals the loss of liberty and emotional distress of being denied their right to liberty without probable cause.

130. That officer Sidneus arrested the Plaintiff and failed to draft an accusatory instrument supporting the arrest and detention of Meyon Grant.

131. That upon information and belief, the arresting officers, including officer Sidneus were not disciplined for failing to draft the required accusatory instruments.

132. That the failure to properly train, supervise and or discipline New York City Police officers for knowingly and willfully failing to draft accusatory instruments and submit such instrument to the Courts is indicative of lack of probable cause for such arrests which presents a clear and present danger to the public that their constitutional rights will be infringed by an unconstitutional de facto policy of allowing police officers to deliberately arrest individuals without probable cause.

133. That the City of New York, has known and tolerated the unconstitutional policy and practice which served as the moving force behind Plaintiff's arrest.

134. That officer Sidneus directly and proximately caused the violation of Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

135. The acts complained of herein, were carried out by the Defendants police officers in their official capacity as police officers of the New York City Police Department pursuant to the customs and practices of the New York City Police Department or as a result of the City of New York's failure to train, supervise or discipline the Defendant officers.

136. The City of New York through its policy makers and agents were fully aware of and did nothing about its police officers engaging in arresting individuals such as the Plaintiff without probable cause.

137. As a direct and proximate result of the City's failure to train, supervise or discipline the Defendant officers for failure to file written accusatory instruments constitutes deliberate indifference which caused Plaintiff to sustained damages as set forth herein.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
PURSUANT TO THE COMMON LAW STATE OF NEW YORK UNDER
RESPONDEAT SUPERIOR**

138. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "137", with the same force and effect as though more fully set forth at length herein.

139. That the City of New York hired and supervised Defendant police officer, Latisha Sidneus, who directly participated in seizing the Plaintiff and held Plaintiff in custody without probable cause.

140. That the Defendant committed the wrongs stated herein without probable cause, and without legal justification all done while acting under color of law and within the scope of her duties as employees of the City of New York and the New York City Police Department.

141. As a result, the City of New is liable for the unlawful acts of officer Latisha Sidneus as an employee of the City of New York pursuant to the well settled and legally recognized doctrine of Respondeat Superior.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT, POLICE OFFICER LATISHA SIDNEUS FOR INTENTIONAL INFLICTION OF EMOTIONAL STRESS PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK.

142. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “141” with the same force and effect as though more fully set forth at length herein.

143. That the Defendant police officer, Sidneus as agent, servant and/or employee of the New York City Police Department, engaged in actions for which the officer intended to inflict emotional trauma on the Plaintiff by arresting and holding Plaintiff in custody without probable cause.

144. That by reason of the foregoing, Plaintiff has suffered emotional pain and suffering, and severe emotional distress due to Defendants’ unlawful and reckless actions as more fully described herein.

145. Officer Sidneus knowingly, willfully, and intentionally and without reason, privilege or probable cause, caused Plaintiff to suffer severe emotional and physical trauma.

146. That the misconduct as more fully described above inflicted by officer Sidneus was extreme and outrageous conduct, and intended to cause severe emotional distress.

147. That as a direct and proximate result of the misconduct and abuse of authority by officer Sidneus, Plaintiff, Meyon Grant has been injured and has sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST OFFICER LATISHA
SIDNEUS FOR FALSE ARREST AND FALSE IMPRISONMENT UNDER THE
COMMON LAW OF THE STATE OF NEW YORK.**

148. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "147" with the same force and effect as though more fully set forth herein.

149. That by reason of the foregoing, Plaintiff, Meyon Grant was intentionally confined without privilege or probable cause to believe that the Plaintiff had been engaged in unlawful activity on September 7, 2021.

150. That Plaintiff were not free to move and were conscious of her confinement and did not consent to such confinement.

151. The Defendant officer held the Plaintiff in custody for approximately twenty-four hours, without probable cause.

152. As a result thereof, Plaintiff, Meyon Grant was falsely detained and imprisoned by officer, Latisha Sidneus..

153. As a direct and proximate result of the above described unlawful and malicious acts of the Defendants ,committed under color of their authority as police officers for the City of New York, Plaintiff sustained injuries and suffered emotional damages all of which resulted in the violation of Plaintiff's rights under the laws and Constitution of the United States, in particular the Fourth and Fourteenth Amendments to the Constitution of the Unites States and under New York State law.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANT
LATISHA SIDNEUS FOR NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK**

154. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “153” with the same force and effect as though more fully set forth at length herein

155. That officer Sidneus as a Police officer for the City of New York, owned a duty to the Plaintiff to engage her duties and functions as a police officer with care, respect and due diligence.

156. The officer had an explicit duty to exercise care in making arrests and filing the required police reports and accusatory instrument in the criminal courts within the City of New York in support of the arrests made by the officers and to avoid the reasonably foreseeable harm of arresting individuals such as the Plaintiff without probable cause.

157. That officer Sidneus knowingly and willfully breached her duty to the Plaintiff by falsely arresting, detaining the Plaintiff without probable cause for which the officer failed to file an accusatory instrument with the Bronx Criminal Court.

158. As a result of the negligent acts of Defendant, Plaintiff suffered severe emotional distress, mental trauma and harm.

WHEREFORE , Plaintiff, Meyon Grant demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

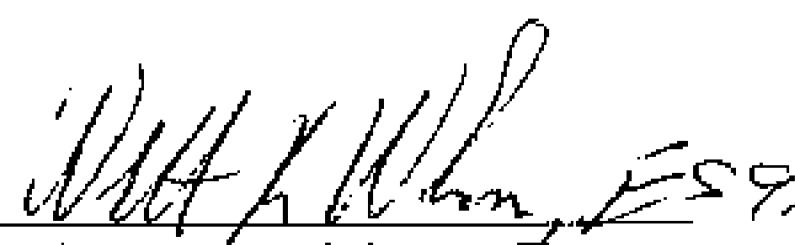
B. Awarding punitive damages to each Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint

that would effectively deter Defendant Latisha Sidneus from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: June 3, 2022

Bronx, New York

By  Esq.
Welton K. Wisham, Esq.
The Law Office of Welton K. Wisham
1200 Waters Pl., Suite 105
Bronx, New York 10461
(718) 924- 3557 Office
(718) 678-8062 Fax
Attorney for the Plaintiff
Email: wkwisham@optonline.net

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

X

MEYON GRANT

Plaintiff,

AFFIDAVIT

-against

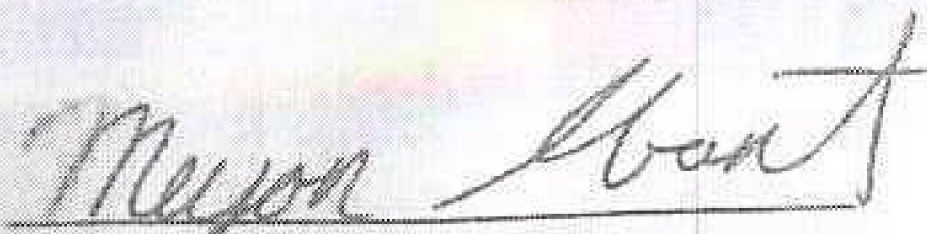
**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. LATISHA SIDNEUS,
SHIELD NO. 3463, IN HER INDIVIDUAL AND OFFICIAL CAPACITY.**

Defendants,

X

STATE OF NEW YORK)
) ss.:
COUNTY OF BRONX)

I, **Meyon Grant** duly sworn, deposes and says under penalty of perjury that
Deponent is the Plaintiff in the within action, that I have read the foregoing Summons and
Complaint and knows the contents thereof ; that the same is true to deponent's own knowledge,
except as to those matters therein stated to be alleged on information and belief, and that as to
those matters deponent believes them to be true.


Meyon Grant
680 Balcom Ave
Bronx, New York 10465

Sworn to before me

This June 7th day of 2022


NOTARY PUBLIC

VIOLETA BACOVIC
Notary Public - State of New York
NO. 01BA6201037
Qualified in Bronx County
My Commission Expires Feb 9, 2025